

**BEFORE THE
FEDERAL MARITIME COMMISSION**

AENEAS EXPORTING LLC,

Claimant,

v.

Docket No. 20-11

CARLO SHIPPING, INC.,

**Erin M. Wirth, Chief
Administrative Law Judge**

Respondent.

REQUEST FOR DISMISSAL PURSUANT TO SETTLEMENT

Claimant Aeneas Exporting LLC (“Aeneas”), by and through its undersigned attorney, hereby requests, pursuant to 46 U.S.C. § 502.72(a)(3), an order dismissing this action with prejudice based on a settlement by the parties, as further detailed below:

On or about June 15, 2020, Aeneas initiated this proceeding against Respondent based on Respondent’s alleged wrongful conduct and detention of 24 of Aeneas’s shipping containers located in Benghazi, Libya. Aeneas also sought to recover damages associated with demurrage charges and penalties incurred as a result of Respondent’s detention of said containers. On July 24, 2020, the Commission issued a Notice of Filing of Complaint and Assignment for this proceeding.

In order to ensure the release of its 24 containers, continued detention of which threatened to put Aeneas out of business, Aeneas agreed to dismiss this proceeding, as well as a related federal lawsuit filed in the District of New Jersey (the “Federal Suit”), and to pay Respondent a sum of \$40,000. (*See* agreed settlement terms, attached hereto as **Exhibit A** (the “Settlement Terms”). Because the parties were unable to reach an agreement regarding the outstanding demurrage

charges and related penalties, no final settlement agreement with releases was signed. As a result, the parties have not agreed to fully release each other from all potential claims, allegations, or causes of action.

Nevertheless, pursuant to the Settlement Terms, Aeneas paid the \$40,000 and dismissed the Federal Suit, with prejudice, as agreed. Respondent released the 24 identified containers subject to payment of the outstanding demurrage charges and penalties owed in Benghazi, Libya.

Accordingly, Aeneas hereby requests that this proceeding be dismissed, with prejudice, subject to the presiding officer's review and approval of the Settlement Terms.

Dated: August 11, 2020

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

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